

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Squad #8	CCRB Case #: 201508312	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/13/2015 3:41 PM	Location of Incident: Inside § 87(2)(b)	Precinct: 108	18 Mo. SOL 8/13/2016	EO SOL 8/13/2016	
Date/Time CV Reported Thu, 10/01/2015 1:48 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 10/01/2015 1:48 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Titterton	14146	945053	108 PCT
2. POM Francisco Maria	08523	938937	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brian Titterton	Abuse: PO Brian Titterton threatened to classify § 87(2)(b) as an emotionally disturbed person.	§ 87(2)(b)
B.POM Brian Titterton	Abuse: PO Brian Titterton entered § 87(2)(b) in Queens.	§ 87(2)(b)
C.POM Francisco Maria	Abuse: PO Francisco Maria entered § 87(2)(b) in Queens.	§ 87(2)(b)
D.POM Brian Titterton	Discourtesy: PO Brian Titterton spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On October 1, 2015, § 87(2)(b) walked into the CCRB and filed this complaint in person almost eight months after the incident. § 87(2)(b)

§ 87(2)(b) Therefore, he filed the complaint with the CCRB to gain some form of resolution.

At approximately 3:41 p.m. on February 13, 2015, § 87(2)(b) walked into the 108th Precinct stationhouse and requested assistance in retrieving her belongings from the residence of her husband, § 87(2)(b) located at § 87(2)(b) in Queens (henceforth referred to as the “marital address”). The couple was in the process of divorce and § 87(2)(b) had been arrested for assaulting and harassing § 87(2)(b) one day prior. As such, two officers identified as PO ##### Titterton and PO Francisco Maria of the 108th precinct, escorted § 87(2)(b) to the apartment and knocked on the door. During a brief conversation through the closed door, PO Titterton allegedly told § 87(2)(b) that if he did not open it, he would take him to § 87(2)(b) for acting crazy (**Allegation A**). After § 87(2)(b) failed to open the door, § 87(2)(b) used her key to unlock it and enter, followed by both officers (**Allegations B and C**). Over the next several minutes, § 87(2)(b) collected her belongings while PO Titterton spoke to § 87(2)(b) in the kitchen. At one point, PO Titterton allegedly asked § 87(2)(b) if § 87(2)(b) was always this “nuts” (**Allegation D**). After § 87(2)(b) retrieved all of her items, she and the officers left the apartment with arresting or summoning § 87(2)(b)

Mediation, Civil and Criminal Histories

- Although § 87(2)(b) originally chose for this case to be mediated, the Department Advocate’s Office determined that it was unsuitable and returned it for investigation on October 26, 2015.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- As of November 12, 2015, no notice of claim has been filed with the City of New York regarding this incident (see Board Review #2).

Civilian and Officer CCRB Histories

- PO Titterton resigned from the NYPD on October 16, 2015, as confirmed by the Department Advocate’s Office (see Board Review #3).
- PO Maria has been a member of the NYPD for ten years and this is the first CCRB complaint against him (see Board Review #4).
- § 87(2)(b) has filed only one other CCRB complaint, § 87(2)(b)
§ 87(2)(b)

Findings and Recommendations

Allegation A—Abuse of Authority: PO Brian Titterton threatened to classify § 87(2)(b) as an emotionally disturbed person.

Allegation B—Abuse of Authority: PO Brian Titterton entered § 87(2)(b) in Queens.

Allegation D—Discourtesy: PO Brian Titterton spoke discourteously to § 87(2)(b)

Due to PO Titterton's separation from the NYPD, the CCRB was unable to obtain a statement from him and § 87(2)(g).

Allegation C—Abuse of Authority: PO Francisco Maria entered § 87(2)(b) in Queens.

§ 87(4)(b) (see Board Review #6) and § 87(2)(b) (see Board Review #7) were both consistent that § 87(2)(b) had moved out of their marital address on January 3, 2015, over five weeks prior to this incident. It is also undisputed that due to § 87(2)(b)'s arrest for assault and harassment the day prior to the incident, § 87(2)(b) had an order of protection against him that was active at the time of this incident (see Board Review #8). The complaint report from February 2, 2015, which led to § 87(2)(b)'s arrest, listed the marital address as § 87(2)(b)'s residence (see Board Review #9).

§ 87(2)(b) § 87(2)(b), stated that as soon as the officers knocked on his door, he told them that they could not enter without his lawyer present. § 87(2)(b) further stated that he saw the door handle jiggling and attempted to lock it, but instead mistakenly unlocked it, thereby unintentionally allowing PO Titterton to enter. § 87(2)(b) claimed that he was initially in contact with the door as it opened, but quickly released it and stepped back so as not to exert any resistance against the officers. § 87(2)(b) maintained that the officers entered first, followed by § 87(2)(b) § 87(2)(b) stated that even after they were inside, he stated that they did not have a warrant and that they needed to leave approximately twenty-five times throughout their stay.

§ 87(2)(b) maintained that all of her identifications at the time of the incident listed her marital address as her residence. She stated that as soon as PO Titterton knocked and requested that § 87(2)(b) open the door, he yelled that he did not “want this” and that they needed to contact his lawyer. § 87(2)(b) maintained that due to § 87(2)(b)'s failure to cooperate, she then used her own key to unlock the door and enter. She stated that did not feel any resistance from § 87(2)(b) and did not even recall if he was close to the door at the time. § 87(2)(b) maintained that she entered first with the officers following behind her. She stated that once inside, she intentionally tried to tune § 87(2)(b) out, so she did not hear most of his conversation with PO Titterton. As such, she did not recall hearing § 87(2)(b) ever state that the officers needed a search warrant or had to leave.

PO Maria (see Board Review #10) stated that when § 87(2)(b) arrived at the stationhouse requesting assistance, he believed that she lived at the marital address because she had a set of keys and because that address was listed on the complaint from February 2, 2015. PO Maria maintained that he believed the order of protection allowed her to remain in the apartment, but

because she had chosen not to do so, he believed that officers could escort her inside to ensure her safety. PO Maria also confirmed that the order of protection provided to the investigation by § 87(2)(b) was the one in effect at the time, and when asked why there was no arranged time for § 87(2)(b) to retrieve her belongings under subsection [11], he stated that that section is only completed when escorting a defendant, not a victim, into a location. PO Maria maintained that after knocking on the door, § 87(2)(b) did not respond in any way, prompting § 87(2)(b) to use her own key to enter ahead of them. PO Maria stated that once inside, § 87(2)(b) began yelling, though he did not recall if he ever told them they were not allowed in the apartment or requested that they leave. However, PO Maria did recall § 87(2)(b) stated that he wanted to call his lawyer, which the officers explained he was free to do. PO Maria confirmed that the sole purpose of entering the apartment was to facilitate the safe retrieval of § 87(2)(b)'s property.

The United States Supreme Court has established that absent exigent circumstances, a physically present co-occupant's stated refusal to permit entry renders a warrantless entry unreasonable and invalid. Georgia v. Randolph, 547 U.S. 103 (2006), which has been cited in People v. Perez, 37 Misc. 3d 734 (Sup. Ct., Kings Co. 2011) (see Board Reviews #11 and #12).

§ 87(2)(g)

[REDACTED]

Squad: ____

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date